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Hjerstedt v. City of Sault Ste. Marie

Court of Appeals of Michigan

February 21, 2023, Decided

No. 358803

Reporter
345 Mich. App. 573 *; 7 N.W.3d 102 **; 2023 Mich. App. LEXIS 1198 ***; 2023 WL 2144757

AMY HJERSTEDT, Plaintiff-Appellant, v CITY OF SAULT STE. MARIE, Defendant-Appellee.

Subsequent History: Reconsideration denied by *Hjerstedt v. City of Sault Ste Marie, 2023 Mich. App. LEXIS 2504 (Mich. Ct. App., Apr. 11, 2023)*

Leave to appeal denied by, in part, Decision reached on appeal by, Remanded by *Hjerstedt v. City of Sault Ste. Marie, 513 Mich. 925, 997 N.W.2d 451, 2023 Mich. LEXIS 2110, 2023 WL 8351733 (Dec. 1, 2023)*

Motion granted by *Hjerstedt v. City of Sault Ste Marie, 2024 Mich. App. LEXIS 2501 (Mich. Ct. App., Apr. 1, 2024)*

Motion granted by *Hjerstedt v. City of Sault Ste Marie, 2024 Mich. App. LEXIS 3131 (Mich. Ct. App., Apr. 24, 2024)*

Prior History: [*1]** Chippewa Circuit Court. LC No. 20-016126-CZ.

Hjerstedt v. City of Sault Ste Marie, 2022 Mich. App. LEXIS 3760 (Mich. Ct. App., June 28, 2022)

Core Terms

disclosure, redacted, exempt, trial court, instructions, deployment, unredacted, use-of-force, law enforcement personnel, summary disposition, ***public interest***, plans, decisions, endanger, policies, codes, resistance, public record, portions, law enforcement officer, law enforcement, use of force, speculative, staff, statutory exemption, ability to protect, policy decision, officer safety, police chief, public body

Case Summary

Overview

HOLDINGS: [1]-The trial court erred by granting summary disposition for the city after concluding that the unredacted use-of-force policy was exempt from disclosure under *MCL 15.243(1)(n)*, *(s)(v)*, and (s)(vii) of Michigan's Freedom of Information Act (FOIA). Because the policy did not give instructions on use of force in specific situations, but rather outlined broad policy prescriptions that should guide law enforcement personnel when engaging in use of force, the policy did not contain "operational instructions" and was not exempt from disclosure; [2]-The trial court also failed to make a positive finding under *MCL 15.243(1)(s)(vii)* because it found that the disclosure of the unredacted Use of Force Policy would “or could” in fact impact the officers’ ability to protect the public and/or themselves.

Outcome
Reversed and remanded.

LexisNexis® Headnotes

Administrative Law > ... > Freedom of Information > Defenses & Exemptions From Public Disclosure > Statutory Exemptions

HN1 **Defenses & Exemptions From Public Disclosure, Statutory Exemptions**

Michigan has a strong public policy favoring public access to government information. Consistent with this policy, *Michigan's Freedom of Information Act (FOIA), MCL 15.231 et seq.*, provides that all persons are entitled to full and complete information regarding the affairs of government and mandates disclosure to keep the citizens informed so that they may fully participate in

the democratic process. MCL 15.231(2). Although certain information may be exempt from disclosure, the statutory exemptions are not intended to shield public bodies from the transparency that FOIA was designed to foster.

Civil Procedure > Appeals > Standards of Review > De Novo Review

Civil Procedure > ... > Summary Judgment > Appellate Review > Standards of Review

HN2 **Standards of Review, De Novo Review**

An appellate court reviews de novo a trial court's decision on a motion for summary disposition.

Civil Procedure > ... > Summary Judgment > Entitlement as Matter of Law > Appropriateness

Civil Procedure > Judgments > Summary Judgment > Entitlement as Matter of Law

Civil Procedure > ... > Summary Judgment > Entitlement as Matter of Law > Genuine Disputes

Civil Procedure > ... > Summary Judgment > Appellate Review > Standards of Review

HN3 **Entitlement as Matter of Law, Appropriateness**

A motion for summary disposition pursuant to MCR 2.116(C)(10) tests the factual sufficiency of the complaint. An appellate court considers all evidence submitted by the parties in the light most favorable to the non-moving party. Summary disposition under MCR 2.116(C)(10) is only appropriate when there is no genuine issue of material fact. A genuine issue of material fact exists when the record, giving the benefit of reasonable doubt to the opposing party, leaves open an issue upon which reasonable minds might differ.

Administrative Law > Governmental Information > Freedom of Information > Reverse Freedom of Information Act Actions

Civil Procedure > Appeals > Standards of Review > Abuse of Discretion

Administrative Law > ... > Enforcement > Judicial Review > Standards of Review

Civil Procedure > Appeals > Standards of Review > De Novo Review

Civil Procedure > Appeals > Standards of Review > Questions of Fact & Law

HN4 **Freedom of Information, Reverse Freedom of Information Act Actions**

The interpretation and application of a statute is a question of law that an appellate court reviews de novo. The appellate court likewise reviews de novo whether the trial court properly interpreted and applied the Michigan's Freedom of Information Act (FOIA), MCL 15.231 et seq. The court's factual findings underlying its application of FOIA are reviewed for clear error. Clear error exists only when the appellate court is left with the definite and firm conviction that a mistake has been made. Certain FOIA provisions require the trial court to balance competing interests. When the appellate court reviews a decision committed to the trial court's discretion, such as the balancing test at issue in FOIA cases, the appellate court must review the discretionary determination for an abuse of discretion and cannot disturb the trial court's decision unless it falls outside the principled range of outcomes.

Administrative Law > ... > Freedom of Information > Methods of Disclosure > Record Requests

HN5 **Methods of Disclosure, Record Requests**

Michigan's Freedom of Information Act (FOIA), MCL 15.231 et seq., grants the public an opportunity to examine and review the workings of government and its executive officials. FOIA commands that persons are entitled to full and complete information regarding the affairs of government and the official acts of those who represent them as public officials and public employees so that they may fully participate in the democratic process. MCL 15.231(2).

Administrative Law > ... > Freedom of

Information > Methods of Disclosure > Record Requests

HN6 **Methods of Disclosure, Record Requests**

Michigan's Freedom of Information Act (FOIA), MCL 15.231 et seq., has been described repeatedly by the Michigan Supreme Court as a pro-disclosure statute.

Administrative Law > ... > Freedom of Information > Enforcement > Burdens of Proof

Evidence > Burdens of Proof > Allocation

Governments > Legislation > Interpretation

Administrative Law > ... > Freedom of Information > Methods of Disclosure > Record Requests

HN7 **Enforcement, Burdens of Proof**

MCL 15.243 of Michigan's Freedom of Information Act (FOIA) exempts certain information from disclosure. The public body has the burden of proving the applicability of any statutory exemption that it claims applies to a FOIA request. To meet this burden, the public body claiming an exemption should provide complete particularized justification, rather than simply repeat statutory language. But, FOIA's exemptions must be narrowly construed to serve the policy of open access to public records.

Administrative Law > ... > Freedom of Information > Methods of Disclosure > Record Requests

Governments > Legislation > Interpretation

HN8 **Methods of Disclosure, Record Requests**

The principal goal of statutory interpretation is to give effect to the Legislature's intent, and the most reliable evidence of that intent is the plain language of the statute. When determining the meaning of a statute's plain language, we examine the statute as a whole, reading individual words and phrases in the context of the entire legislative scheme. Accordingly, these exemptions should be construed in accordance with Michigan's Freedom of Information Act's (FOIA's), MCL 15.231 et seq., stated purpose of supplying full and complete information regarding the affairs of government to interested citizens. MCL 15.231(2). Where the statutory language is unambiguous, the plain meaning reflects the Legislature's intent and the statute must be applied as written.

Administrative Law > ... > Freedom of Information > Defenses & Exemptions From Public Disclosure > Law Enforcement Records

Administrative Law > ... > Freedom of Information > Methods of Disclosure > Public Inspection

HN9 **Defenses & Exemptions From Public Disclosure, Law Enforcement Records**

Construing the terms law enforcement personnel and deployment to serve Michigan's Freedom of Information Act's (FOIA's), MCL 15.231 et seq., policy of open access to public records, "plans for deployment of law enforcement personnel" refers to a procedure for placing or arranging law enforcement personnel in a position for a particular use or purpose.

Administrative Law > ... > Freedom of Information > Defenses & Exemptions From Public Disclosure > Law Enforcement Records

Governments > Local Governments > Employees & Officials

HN10 **Defenses & Exemptions From Public Disclosure, Law Enforcement Records**

The Michigan Supreme Court, albeit in the employment context, has recognized that a policy is a definite course or method of action selected (as by a government, institution, group, or individual) from among alternatives and in the light of given conditions to guide and usually determine present and future decisions; a projected program consisting of desired objectives and the means to achieve them. The Supreme Court echoed this definition recently when examining the constitutionality of Grand Rapids Police Department photograph and print policy, finding that an "official policy" often refers to formal rules or understandings that are intended to, and do, establish fixed plans of action to be followed under similar circumstances consistently and over time.

Governments > Local Governments > Employees & Officials

HN11 **Local Governments, Employees & Officials**

Governmental bodies adopt many courses of action that do not guide present or future decisions. Such decisions may be categorized as operational decisions rather than policy decisions. Operational decisions concern routine, everyday matters and do not require evaluation of broad policy factors. Operational decisions may also be characterized as the execution or implementation of previously formulated policy.

Administrative Law > ... > Freedom of Information > Defenses & Exemptions From Public Disclosure > Commercial Information & Trade Secrets

HN12 **Defenses & Exemptions From Public Disclosure, Commercial Information & Trade Secrets**

MCL 15.243(1)(f), which exempts from Michigan's Freedom of Information Act (FOIA) disclosure of trade secrets or commercial or financial information voluntarily provided to an agency for use in developing governmental policy if certain requirements are met.

Administrative Law > ... > Defenses & Exemptions From Public Disclosure > Law Enforcement Records > Endangerment

Administrative Law > ... > Defenses & Exemptions From Public Disclosure > Law Enforcement Records > Personal Information

HN13 **Law Enforcement Records, Endangerment**

MCL 15.243(1)(s)(vii) of Michigan's Freedom of Information Act (FOIA) exempts from disclosure law enforcement agency records, the release of which would endanger the life or safety of law enforcement officers except in particular circumstances where the ***public interest*** in disclosure outweighs the ***public interest*** in nondisclosure.

Administrative Law > ... > Freedom of Information > Methods of Disclosure > Record Requests

HN14 **Methods of Disclosure, Record Requests**

MCL 15.243(1)(s)(vii) of Michigan's Freedom of Information Act (FOIA) requires a finding that the release would endanger public safety, not that it would or could.

Administrative Law > ... > Defenses & Exemptions From Public Disclosure > Law Enforcement Records > Enforcement Proceedings

HN15 **Law Enforcement Records, Enforcement Proceedings**

MCL 15.243(1)(b)(i) of Michigan's Freedom of Information Act (FOIA) exempts from disclosure public records that were compiled for law enforcement purposes, but only to the extent that disclosure as a public record would interfere with law enforcement proceedings.

Administrative Law > ... > Freedom of Information > Methods of Disclosure > Record Requests

HN16 **Methods of Disclosure, Record Requests**

Erring on the side of caution contradicts the mandates of Michigan's Freedom of Information Act (FOIA), which is a pro-disclosure statute.

Counsel: For AMY HJERSTEDT, Plaintiff - Appellant: MARK L DOBIAS.

For CITY OF SAULT STE MARIE, Defendant - Appellee: KAREN E BEACH.

Judges: Before: PATEL, P.J., and BORRELLO and SHAPIRO, JJ.

Opinion by: Sima G. Patel

Opinion

[*576] [105]** PATEL, P.J.

George Floyd's death in May 2020 prompted citizens to advocate for ***systemic change*** in law enforcement across the country. The mass movement included inquiries into use-of-force policies implemented by police departments in each state. Weeks after Floyd's death, Amy Hjerstedt requested a copy of the Sault Ste. Marie Police Department's use-of-force policy pursuant to *Michigan's Freedom of Information Act (FOIA), MCL 15.231 et seq.* The city **[*577]** denied the request, claiming the policy was exempt from disclosure. Hjerstedt appealed the denial. The city commission voted to disclose a redacted copy of the policy citing a number of statutory exemptions. Hjerstedt initiated this FOIA action challenging the city's decision. The trial court granted summary disposition in favor of the city and dismissed Hjerstedt's complaint, concluding that the unredacted policy was exempt from disclosure because it (1) was a record of law enforcement communication codes or plans for deployment, *MCL 15.243(1)(n)*; (2) disclosed law enforcement operational **[***2]** instructions, *MCL 15.243(1)(s)(v)*; (3) would endanger the safety of law enforcement officers, *MCL 15.243(1)(s)(vii)*; and (4) the public's interest in disclosure did not outweigh the public's interest in nondisclosure.

HN1 Michigan has a strong public policy favoring public access to government information. Consistent with this policy, FOIA provides that "all persons . . . are entitled to full and complete information regarding the affairs of government" and mandates disclosure to keep the citizens informed "so that they may fully participate in the democratic process." *MCL 15.231(2)*. Although certain information may be exempt from disclosure, the statutory exemptions are not intended to shield public bodies from the transparency that FOIA was designed to foster. We hold that the trial court erred by concluding that the unredacted policy was exempt from disclosure under *MCL 15.243(1)(n)*, *(s)(v)*, and *(s)(vii)*. Accordingly, we reverse the court's order granting the city's motion for summary disposition pursuant to *MCR2.116(C)(10)* and remand for further proceedings.

[*578] I. FACTUAL BACKGROUND

On June 25, 2020, Hjerstedt submitted a FOIA request to the city seeking the "Sault Police use of force policy/standards." The city denied Hjerstedt's request, claiming that the policy was exempt from disclosure **[***3]** under *MCL 15.243(1)(n)* because "it would prejudice the city's ability to protect the public safety." Hjerstedt **[**106]** appealed the denial,[1] asserting that *MCL 15.243(1)(n)* because the use-of-force policy "does not include deployment plans or communication codes." The appeal was submitted to the city commission for consideration.

The city's staff, including the city attorney and city manager, provided the city commission with an analysis and a recommendation to disclose the use-of-force policy with redactions. The staff maintained that the policy was part of the "general orders and policies for various basic operations" of the police department and included

> information, which if made public, would inform individuals with criminal threat intent or resistance when and how an officer would use his or her training and the limitations therein in order to eliminate the threat or overcome the resistance presented. This information would allow the opportunity for a subject to overpower an officer's efforts to eliminate the threat or resistance, placing the officer and/or innocent citizen in jeopardy of severe injury or death.

The staff contended that the policy was exempt from disclosure because it (1) was an investigating **[***4]** record that would endanger the safety of law enforcement **[*579]** officers if disclosed, *MCL 15.243(1)(b)(vi)*; (2) was a record of law enforcement communication codes or plans for deployment, *MCL 15.243(1)(n)*; (3) disclosed law enforcement operational instructions, *MCL 15.243(1)(s)(v)*; (4) revealed the contents of law enforcement staff manuals, *MCL 15.243(1)(s)(vi)*; and (5) would endanger the safety of law enforcement officers if disclosed, *MCL 15.243(1)(s)(vii)*. But "given the social climate around Force of Use [sic] policies," the staff recommended releasing information that would not place the officers' safety in jeopardy. The city commission voted to release a redacted version of the policy. Hjerstedt received a heavily redacted copy of the policy.[2]

Hjerstedt initiated this FOIA action challenging the

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[1] Although Hjerstedt's initial FOIA request does not reflect it, her FOIA appeal indicates that her request was made on behalf of the League of Women Voters of Eastern Upper Peninsula.

[2] The copy released to Hjerstedt included significant redactions in the sections pertaining to use-of-force considerations as well as the escalation and de-escalation of force.

decision. The city moved for summary disposition pursuant to MCR 2.116(C)(7) and (10), arguing that the redacted information was exempt from disclosure under MCL 15.243(1)(n), (s)(v), (s)(vi), and (s)(vii) and that the redacted information was necessary "for the public and/or officer safety." The city relied on affidavits from the city's current and former police chiefs, in which they both claimed that the disclosure of the information would or could impact safety of the public and/or officers because it would inform individuals with criminal intent or those who resist know [sic] when and how **[***5]** an officer would use his or her training to respond and the limitations posed in order to eliminate the threat or to overcome the resistance presented.

> 7. The information if disclosed would or could impact safety of the public and/or officers because it would inform **[*580]** individuals with criminal intent or those who resist also know the factors that are important for the officer to consider in making a decision how to respond.
>
> 8. Armed with this information a potential suspect could circumvent the officers' actions thus placing both the suspect and officer in danger.

[107]** In response, Hjerstedt requested judgment as a matter of law under MCR 2.116(I)(2). She also filed a cross-motion for summary disposition pursuant to MCR 2.116(C)(9) and (10). She described the police chiefs' affidavits as "conclusory," "self-serving opinions" that did not actually "address the purported exemptions." She relied on unredacted use-of-force policies from the Michigan State Police, Department of Homeland Security, Michigan Association of Chiefs of Police, Lake County Sheriff's Office, and Newaygo County Sheriff's Office that were available to the public online. Hjerstedt posited that the other departments' unredacted policies were nearly identical **[***6]** to the unredacted portions of the city's policy, and because anyone could access them, the city's argument that disclosure of its unredacted policy would arm persons with information to circumvent officers' actions was meritless. Hjerstedt argued that the exemptions claimed by the city were inapplicable and that the public's interest warranted disclosure.

The city's police chief, Wesley Bierling, testified that he believed the redactions were necessary to protect the safety of officers and the public. Chief Bierling was not the city's police chief at the time that the redactions were made, and he was not the decision-maker with regard to Hjerstedt's FOIA request. But he maintained that he would have made the same redactions. Consistent with his affidavit, Chief Bierling testified that the redacted information "could or would impact **[*581]** the safety of [the] officers and [the] public" because it could provide information on how the officers "may use force, may consider using force, or may react to certain situations, and what they would use in their decision-making process." He was not concerned about what other municipalities **[***7]** did with their policies, stating that it was "not an apples-to-apples comparison." He testified that when he makes a decision to redact public records, he "always err[s] on the side of caution" in order to ensure officer safety.

In addition to the evidence and testimony presented by the parties, the trial court reviewed an unredacted copy of the city's use-of-force policy *in camera*. The court found that the redacted portion of the policy involved "tactics and techniques or operational guidelines and according to the affidavit of former City Police Chief, John Riley, disclosure of the information would impact the public and/or officer safety because it would use his or her training to respond and the limitations posed in order to eliminate the threat or to overcome the resistance presented." The court noted that the former chief's decision was supported by Chief Bierling. The court found "that the [d]isclosure of the unredacted Use of Force Policy would or could in fact impact the officer's [sic] ability to protect the public and/or themselves. The safety of the Sault Ste. Marie Police Officers' safety [sic] is paramount and consequently the ***public interest*** is outweighed in the disclosure **[***8]** of said policy." The trial court granted the city's motion for summary disposition and dismissed Hjerstedt's complaint, concluding that the city's decision to redact the policy fit within the exemptions set forth in **[*582]** MCL 15.243(1)(n), (s)(v), and (s)(vii).[3] Hjerstedt now challenges the trial court's ruling.

II. STANDARDS OF REVIEW

HN2 "We review de novo a trial court's decision on a motion for summary disposition." El-Khalil v Oakwood Healthcare, Inc, 504 Mich 152, 159; 934 NW2d **[**108]** 665 (2019). In this case, the trial court did not expressly indicate whether it granted the city's motion under MCR 2.116(C)(7) or (10), but because it considered affidavits and testimony beyond the pleadings, we can fairly

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[3] Although the city also cited MCL 15.243(1)(s)(vi) in its motion for summary disposition, the court did not rely on this statutory exemption in reaching its decision.

surmise that the motion was granted under MCR 2.116(C)(10). Cuddington v United Health Servs, Inc, 298 Mich App 264, 270, 826 NW2d 519 (2012). **HN3** A motion for summary disposition pursuant to MCR 2.116(C)(10) tests the factual sufficiency of the complaint. Woodring v Phoenix Ins Co, 325 Mich App 108, 113; 923 NW2d 607 (2018). We consider all evidence submitted by the parties in the light most favorable to the nonmoving party. El-Khalil, 504 Mich at 160. Summary disposition under MCR 2.116(C)(10) is only appropriate when there is no genuine issue of material fact. *Id.* "A genuine issue of material fact exists when the record, giving the benefit of reasonable doubt to the opposing party, leaves open an issue upon which reasonable minds might differ." Zaher v Miotke, 300 Mich App 132, 139-140; 832 NW2d 266 (2013).

HN4 The interpretation and application of a statute is a question of law that we review de novo. **[***9]** Boyle v Gen Motors Corp, 468 Mich 226, 229; 661 NW2d 557 (2003). We likewise review "de novo whether the trial court properly interpreted and applied the FOIA." Mich **[*583]** Open Carry, Inc v Dep't of State Police, 330 Mich App 614, 621; 950 NW2d 484 (2019). The court's factual findings underlying its application of FOIA are reviewed for clear error. *Id.* "Clear error exists only when the appellate court is left with the definite and firm conviction that a mistake has been made." Herald Com Inc v Eastern Mich Univ Bd of Regents, 475 Mich 463, 471; 719 NW2d 19 (2006) (cleaned up). "[C]ertain FOIA provisions require the trial court to balance competing interests." Id. at 470. When we review "a decision committed to the trial court's discretion, such as the balancing test at issue in [FOIA] case[s]," we review the discretionary determination for an abuse of discretion and will not disturb the trial court's decision unless it falls outside the range of principled outcomes. Id. at 472.

III. ANALYSIS

Hjerstedt argues that the trial court erred by granting summary disposition in favor of the city because none of the statutory exemptions were applicable. We agree.

HN5 Michigan's FOIA grants the public an opportunity to "examine and review the workings of government and its executive officials." Messenger v Ingham Co Prosecutor, 232 Mich App 633, 641; 591 NW2d 393 (1998). FOIA commands that persons "are entitled to full and complete information regarding the affairs of government and the official acts of those who represent them **[***10]** as public officials and public employees . . . so that they may fully participate in the democratic process." MCL 15.231(2). Consistent with this policy, FOIA indicates that "[e]xcept as expressly provided in [MCL 15.243], upon providing a public body's FOIA coordinator with a written request that describes a public record sufficiently **[*584]** to enable the public body to find the public record, a person has a right to inspect, copy, or receive copies of the requested public record of the public body." MCL 15.233(1). **HN6** FOIA has been described repeatedly by our Supreme Court as a "prodisclosure statute." Sole v Mich Economic Dev Corp, 509 Mich 406, 413; 983 NW2d 733 (2022); Herald Co v Bay City, 463 Mich 111, 119; 614 NW2d 873 (2000); Swickard v Wayne Co **[**109]** Med Examiner, 438 Mich 536, 544; 475 NW2d 304 (1991).

HN7 MCL 15.243 exempts certain information from disclosure. The public body has the burden of proving the applicability of any statutory exemption that it claims applies to a FOIA request. Detroit Free Press, Inc v Southfield, 269 Mich App 275, 281; 713 NW2d 28 (2005). "To meet this burden, the public body claiming an exemption should provide complete particularized justification, rather than simply repeat statutory language." Detroit Free Press v City of Warren, 250 Mich App 164, 167; 645 NW2d 71 (2002). But FOIA's exemptions "must be narrowly construed to serve the policy of open access to public records." Mich Open Carry, 330 Mich App at 625.

In this case, the trial court concluded that the redacted material was exempt from disclosure under MCL 15.243(1)(n), (s)(v), and (s)(vii). Resolution of this matter requires us to interpret these **[***11]** statutory exemptions. **HN8** "The principal goal of statutory interpretation is to give effect to the Legislature's intent, and the most reliable evidence of that intent is the plain language of the statute." South Dearborn Environmental Improvement Ass'n, Inc v Dep't of Environmental Quality, 502 Mich 349, 360-361; 917 NW2d 603 (2018). When determining the meaning of a statute's plain language, we examine "the statute as a whole, reading individual **[*585]** words and phrases in the context of the entire legislative scheme." Kemp v Farm Bureau Gen Ins Co of Mich, 500 Mich 245, 252; 901 NW2d 534 (2017). Accordingly, these exemptions should be construed in accordance with FOIA's stated purpose of supplying "full and complete information regarding the affairs of government" to interested citizens. MCL 15.231(2). "Where the statutory language is unambiguous, the plain meaning reflects the Legislature's intent and the statute must be applied as written." Honigman Miller Schwartz & Cohn LLP v Detroit, 505 Mich 284, 294-295; 952 NW2d 358 (2020)

(cleaned up).

A. MCL 15.243(1)(n)

First, the trial court concluded that the redacted material was exempt from disclosure under MCL 15.243(1)(n), which exempts "[r]ecords of law enforcement communication codes, or plans for deployment of law enforcement personnel, that if disclosed would prejudice a public body's ability to protect the public safety unless the ***public interest*** in disclosure under this act outweighs the ***public interest*** in nondisclosure in the particular instance."[4] The trial court failed **[***12]** to articulate any factual findings that the redacted portions of the policy were either communication codes or plans for deployment. The city has not asserted that the redacted portion of the policy contains communication codes, and our review of the policy does not reveal any communication codes. Accordingly, we will **[*586]** limit our review to whether the redacted portion contains "plans for deployment of law enforcement personnel."

As commonly understood, the phrase "deployment of . . . personnel" means sending personnel to address a particularized threat or situation. For example, in the context of military deployment, units of the military are sent to specific locations to address and fulfill specific mission requirements. The same is true for law enforcement **[**110]** personnel. Deployment of law enforcement personnel can be to address a specific threat, such as responding to the scene of a vehicle crash or active shooter situation, or a specific mission, such as manning a DUI checkpoint. But the common thread is sending, i.e., deploying, law enforcement personnel somewhere to address a specific issue.

HN9 Construing these terms to serve FOIA's policy of open access to public records, Mich Open Carry, 330 Mich App at 625, "plans for deployment **[***13]** of law enforcement personnel" refers to a procedure for placing or arranging law enforcement personnel in a position for a particular use or purpose. For example, in the event of civil unrest in a community, a law enforcement agency may have a plan for deployment that includes when and where law enforcement personnel will be sent and how they will respond. Use-of-force policies do not outline specific deployments of law enforcement personnel to specific locations or particularized threats.

We find that a general, department-wide policy regarding various factors for officers to consider in deciding whether force should be used and, if so, the type of force to be used, is far too general to be considered a "plan for deployment." The trial court's implicit finding that the redacted material contained **[*587]** communication codes or plans for deployment of law enforcement personnel was clear error. Because we find that the redacted portions of the policy do not contain communication codes or plans for deployment, it is unnecessary for us to consider the balancing test set forth in MCL 15.243(1)(n).

B. MCL 15.243(1)(s)(v)

Next, the trial court determined that the redacted material was exempt under MCL 15.243(1)(s)(v), which exempts "operational instructions **[***14]** for law enforcement officers or agents" from disclosure "[u]nless the ***public interest*** in disclosure outweighs the ***public interest*** in nondisclosure in the particular instance[.]" FOIA does not define "operational instructions," and there is no caselaw interpreting this subparagraph. The trial court's conclusion that this exemption applied was conclusory: it did not include any factual support or an analysis of the term "operational instructions." Hjerstedt argues that "[o]perational instructions or manuals prescribe items such as uniforms, car operations, evidence handling, weapons deployment and use, firearm handling and safety or procedure for arrests, searches, and seizures." The city argues that "'operational instructions' are 'approved standard procedures for performing operations safely.'"

The phrase "operational instructions" means instructions relating to operations. The critical inquiry, then, is whether the use-of-force policy contains instructions relating to operations. We hold that there is a conceptual difference between policy and operations and that the use-of-force policy in this case deals with policy, only, and does not contain any "operational instructions." **[***15]** The policy, thus, was not exempt from disclosure.

[*588] ***HN10*** Our Supreme Court, albeit in the employment context, recognized that a "policy" is "a definite course or method of action selected (as by a government, institution, group, or individual) from among alternatives and in the light of given conditions to guide and usually determine present and future

[4] Because Hjerstedt failed to address this statutory exemption in her brief on appeal, we are not required to address the merits. MOSES, Inc v Southeast Mich Council of Gov'ts, 270 Mich App 401, 417; 716 NW2d 278 (2006). But our de novo review necessarily includes this issue.

decisions; . . . a projected program consisting of desired objectives and the means to achieve them . . . ." *In re Certified Question, 432 Mich 438, 455-456; 443 NW2d 112 (1989)* (cleaned up). The Supreme Court echoed this definition recently in *Johnson v VanderKooi, 502 Mich 751, 757, 763-64; 918 NW2d 785 (2018)* when examining the constitutionality of the **[**111]** Grand Rapids Police Department's "photograph and print" policy: "An 'official policy' often refers to formal rules or understandings . . . that are intended to, and do, establish fixed plans of action to be followed under similar circumstances consistently and over time." (Cleaned up.) Operational instructions, on the other hand, deal with how policy is implemented in specific circumstances.

Justice CORRIGAN, in her partially concurring opinion in *Coblentz v City of Novi, 475 Mich 558, 582-597; 719 NW2d 73 (2006)* (CORRIGAN, J., concurring in part and dissenting in part), examined the distinction between policy and operational decisions. We find her analysis persuasive and adopt it here. After **[***16]** acknowledging the definition of "policy" in *In re Certified Question*, she reasoned that the definition should apply equally in FOIA cases.[5] But she emphasized "that this definition **[*589]** does not encompass every decision regarding a course of action made by a governmental entity." *Id. at 593*. ***HN11*** "[G]overnmental bodies adopt many courses of action that do not guide present or future decisions. Such decisions may be categorized as 'operational' decisions rather than 'policy' decisions. Operational decisions concern routine, everyday matters and do not require evaluation of broad policy factors." *Id.* "Operational decisions may also be characterized as 'the execution or implementation of previously formulated policy.'" *Id.*, quoting *Hanson v Vigo Co Bd of Comm'rs, 659 NE2d 1123, 1126 (Ind App, 1996)*. Justice CORRIGAN also cited the Arizona Court of Appeals, which offered this insightful analysis of contrasting examples of operational versus policy decisions:

> By way of illustration, a decision by the district board to construct a playground at a school and allocate funds for that purpose would be a policy decision . . . . Deciding what specific pieces of equipment to have on the playground would not be a policy decision, but rather would be an operational level decision. *See, **[***17]** e.g.*, *Warrington v. Tempe Elementary Sch. Dist., [187 Ariz 249, 252; 928 P2d 673 (Ariz App, 1996)]* (school district's decision regarding placement of bus stop is an operational level decision); *Evenstad* [*v State*], 178 Ariz. [578] at 582-84[;] 875 P.2d [811] at 815-17 (App. 1993) (issuance of driver's license by MVD is an operational level decision; prescribing rules for issuance is making of policy); *Rogers v State, 51 Haw. 293, 296-98[;] 459 P.2d 378, 381 (Haw. 1969)* (operational level acts concern routine, everyday matters, not requiring evaluation of broad policy factors; operational acts include kinds of road signs to place and which center line stripes to repaint); *Stevenson v. State Dept. of Transp., 290 Or. 3, 9-12[;] 619 P.2d 247, 251-52 (Or. 1980)* (decision to build a highway rather than a railroad track is exercise of governmental discretion or policy judgment entitled to immunity; planning and design of the road does not involve use of discretion in the sense that a policy decision is required). **[*590]** [*Coblentz, 475 Mich at 593 n 5*, quoting *Schabel v Deer Valley Unified Sch Dist No 97, 186 Ariz 161, 166; 920 P2d 41 (Ariz App, 1996)*.]

[112]** The use-of-force policy in this case deals with policy, not operations. The term "operational instructions" would specifically exclude "courses of action that . . . guide present or future decisions." *Id. at 593*. The use-of-force policy is clearly intended to guide the police in making future decisions pertaining to when the use of force is appropriate and the degree of force that may be appropriate. The policy does not give instructions on use of force in specific situations, but rather outlines broad **[***18]** policy prescriptions that should guide law enforcement personnel when engaging in use of force. The policy therefore does not contain "operational instructions" and is not exempt from disclosure.

The trial court's implicit finding that the redacted material contained operational instructions was clear error. Because we find that the redacted portions of the policy are not operational instructions, it is unnecessary for us to consider the balancing test set forth in *MCL 15.243(1)(s)(v)*.

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[5] *Coblentz* ***HN12*** dealt with *MCL 15.243(1)(f)*, which exempts from FOIA disclosure "[t]rade secrets or commercial or financial information voluntarily provided to an agency for use in developing governmental policy" if certain requirements are met. Justice CORRIGAN's analysis focused on the meaning of "governmental policy" in this subdivision. While this case deals with *Subdivision s(v)*, Justice CORRIGAN's analysis of policy versus operational decisions is still germane.

C. MCL 15.243(1)(s)(vii)

HN13 Finally, the trial court concluded that the redacted material was exempt under MCL 15.243(1)(s)(vii), which exempts from disclosure law enforcement agency records, "the release of which would . . . [e]ndanger the life or safety of law enforcement officers" except in particular circumstances in which "the ***public interest*** in disclosure outweighs the ***public interest*** in nondisclosure . . . ." The city submitted affidavits from former Chief Riley and current Chief Bierling, both of whom speculated that disclosure of the unredacted **[*591]** portions of the policy "would *or could* impact safety of the public and/or officers" and "a potential suspect *could* circumvent [an] officers' actions thus placing . . . [the] officer in danger." (Emphasis added.) ***HN14*** But MCL 15.243(1)(s)(vii) requires **[***19]** a finding that the release *would* endanger public safety, not that it would *or could*.

Our Supreme Court discussed the distinction between "would" and "could" in Evening News Ass'n v City of Troy, 417 Mich 481, 505-506; 339 NW2d 421 (1983). The Court found that there was a clear distinction between (1) the tentative opinion that an investigation "[c]ould indeed well be jeopardized" by providing the information requested and (2) the positive conclusion that providing the information "would . . . interfere" with the investigation. *Id.* While Evening News involved the application of MCL 15.243(1)(b)(i), not MCL 15.243(1)(s)(vii), the exemption required a positive conclusion that something *would* happen, just as in this case.[6] "Could" and "would" are "obviously not the same thing." Id. at 506. Former Chief Riley and current Chief Bierling's speculative statements in their affidavits that endangerment "would or could" occur are tentative opinions. Because MCL 15.243(1)(s)(vii) requires a positive conclusion, these tentative opinions are insufficient to meet the city's burden.

In addition to the affidavits, Chief Bierling testified that the redactions were necessary to protect the safety of the public and police officers. Once again, he speculated that the redacted information "could or would" **[*592]** impact the safety of the officers and the public because it **[***20]** could provide information on how the officers "may use force, may consider using force, or may react to certain situations, and what they would use in their decision-making process." Chief Bierling's testimony that **[**113]** the redacted information "would or could" impact officer safety is a tentative opinion, not a positive conclusion. Chief Bierling also testified that release of the unredacted policy would presumably make his staff "nervous" because they would feel as though they did not "have an edge." Chief Bierling's assumption that the release of information would make officers nervous is a far cry from establishing that it would endanger them. Chief Bierling further testified that he "always err[s] on the side of caution" in order to ensure officer safety when making a decision to redact public records. ***HN16*** But erring on the side of caution contradicts the mandate of FOIA, which is a "prodisclosure statute." Sole, 509 Mich at 413; Herald, 463 Mich at 119; Swickard, 438 Mich at 544.

The trial court also failed to make a positive finding that disclosure would endanger the city's police officers. Instead, the court found "that the [d]isclosure of the unredacted Use of Force Policy would *or could* in fact impact the officer's [sic] ability to protect the public and/or themselves." (Emphasis added.) This is not the positive finding **[***21]** required by MCL 15.243(1)(s)(vii).

Moreover, the city failed to identify any evidence to support former **[*593]** Chief Riley's and Chief Bierling's speculative testimony that the disclosure "would or could" potentially endanger the officers. It was the city's burden to produce particularized evidence that disclosure would endanger law enforcement personnel. See Evening News, 417 Mich at 501-502, 503. Former Chief Riley and Chief Bierling's speculative statements and opinion testimony were based on their tenuous claim that "potential suspects" could study the redacted portions of the policy and, somehow, circumvent an officer's use of force, which would allegedly aid the suspect in resisting arrest. The city failed to present factual evidence that this scenario was certain to occur. As discussed previously, numerous other jurisdictions (even those that routinely perform joint operations with the city's police department) have opted to make their use-of-force policies easily available to the public via the internet. Given this easy and widespread exposure, and the similarity in subject matter discussed, it is telling that the city could not produce any particularized evidence that the availability of these policies has resulted in endangerment of the life or safety of law **[***22]** enforcement officers, their families, or the general

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[6] ***HN15*** MCL 15.243(1)(b)(i) exempts from disclosure public records that were "compiled for law enforcement purposes, but only to the extent that disclosure as a public record *would* . . . [i]nterfere with law enforcement proceedings." (Emphasis added.)

public. Chief Riley's and Chief Bierling's speculative affidavits are insufficient to establish the necessary proof. The city has failed to present factual evidence to establish that the public's knowledge of the redacted portions of the policy would endanger the officers.

The trial court clearly erred by determining that the redacted material "would *or could* in fact impact the officer's [sic] ability to protect the public and/or themselves." (Emphasis added.) Because we conclude that the city failed to meet its burden to prove that officer endangerment necessarily "would" result from disclosure **[*594]** of the unredacted policy, it is unnecessary for us to consider the balancing test set forth in *MCL 15.243(1)(s)(vii)*.[7]

IV. CONCLUSION

The trial court clearly erred by determining that the unredacted policy was exempt **[**114]** from disclosure under *MCL 15.243(1)(n)*, *(s)(v)*, and *(s)(vii)*. We reverse the trial court's grant of summary disposition in favor of the city, and we remand for entry of judgment in favor of Hjerstedt. On remand the trial court shall: (1) order disclosure of the unredacted use-of-force policy; (2) award Hjerstedt reasonable attorney fees, costs, and disbursements under *MCL 15.240(6)*; and (3) determine whether Hjerstedt **[***23]** is entitled to punitive damages under *MCL 15.240(7)*.

Reversed and remanded for further proceedings consistent with this opinion. We do not retain jurisdiction. Hjerstedt, as the prevailing party, may tax costs. *MCR 7.219(A)*.

/s/ Sima G. Patel

/s/ Stephen L. Borrello

/s/ Douglas B. Shapiro

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[7] The city also claims that the redacted material is exempt from disclosure under *MCL 15.243(1)(s)(vi)*. But the trial court clearly rejected this argument because it only found that the material was exempt from disclosure under *MCL 15.243(1)(n)*, *(s)(v)*, and *(s)(vii)*, and the city did not file a cross-appeal. Notwithstanding, we find no merit in the city's argument.